COMPARATIVE CONSTITUTIONAL DESIGN

METHOD → ADAPTATION → FORMS → EXECUTIVES → FEDERALISM → REVIEW → RIGHTS → AMENDMENT → SECULARISM → OFFICES → PYQS → SYNTHESIS

Read the thick spec-all from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

● PRIMARY CORE FLOW ● SUBORDINATE EXTRA ● APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • active generation g3 • explicit approval of this exact generation is required • all prior artifacts unchanged

00

STAGE 00

COMPARE FUNCTIONS AND CONTEXTS, NOT COUNTRY LABELS

COMPARE FUNCTIONS AND CONTEXTS, NOT COUNTRY LABELS · ROOT QUESTION · WHY DOES THE SAME CONSTITUTIONAL INSTITUTION BEHAVE DIFFERENTLY AFTER · COMPARATIVE METHOD FUNCTION · SOURCE MODEL · INDIAN TEXT · SOCIAL/FEDERAL CONTEXT · JUDICIAL INTERPRETATION

ROOT QUESTION

Why does the same constitutional institution behave differently after transplantation? → COMPARATIVE METHOD function → source model → Indian text → social/federal context → judicial interpretation → political practice → consequence.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• ROOT QUESTION • Why does the same constitutional institution behave differently after transplantation?	• COMPARATIVE METHOD function → source model → Indian text → social/federal context • judicial interpretation → political practice → consequence.	• AXES codification/rigidity • executive-legislative relation	• federal distribution rights/remedies • "borrowed from" without adaptation and purpose is a memory list, not constitutional analysis.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The same institution can operate differently because of party systems, conventions, federal structure, political history and judicial doctrine Applied here to compare functions and contexts, not country labels Applied here to compare functions and contexts, not country labels.

01

STAGE 01

BORROWED SOURCE VERSUS INDIAN CONSTITUTIONAL ADAPTATION

SOURCE INFLUENCE · UK · US · CANADA · IRELAND · AUSTRALIA · INDIAN FILTER · REPUBLIC · FEDERAL DIVERSITY · SOCIAL TRANSFORMATION · TEXT + DOCTRINE + PRACTICE · SOURCE IS NOT OPERATIONAL IDENTITY · ADAPTATION · NEW CONSTITUTIONAL CONSEQUENCE

FUNCTION / SOURCE	INDIAN ADAPTATION	CHECK / LIMIT	EXAM CONSEQUENCE
• SOURCE INFLUENCE • UK · US · CANADA · IRELAND · AUSTRALIA	• INDIAN FILTER • REPUBLIC · FEDERAL DIVERSITY · SOCIAL TRANSFORMATION	• TEXT + DOCTRINE + PRACTICE • SOURCE IS NOT OPERATIONAL IDENTITY	• ADAPTATION • NEW CONSTITUTIONAL CONSEQUENCE

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: India selected and transformed foreign techniques; constitutional ancestry does not establish present institutional identity Applied here to borrowed source versus indian constitutional adaptation.

02

STAGE 02

WRITTEN, UNWRITTEN, RIGID AND FLEXIBLE CONSTITUTIONAL FORMS

WRITTEN, UNWRITTEN, RIGID AND FLEXIBLE CONSTITUTIONAL FORMS · UK UNCODIFIED · STATUTES + COMMON LAW + CONVENTIONS + AUTHORITATIVE PRACTICE · POLITICALLY FLEXIBLE UNDER PARLIAMENTARY SOVEREIGNTY · USA CODIFIED, SUPREME AND COMPARATIVELY RIGID. · INDIA CODIFIED AND SUPREME; AMENDMENT ROUTES RANGE FROM SIMPLE · SOUTH AFRICA · GERMANY WRITTEN TRANSFORMATIVE/POST-AUTHORITARIAN CONSTITUTIONS WITH ENTRENCHED PRINCIPLES.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• UK uncodified: statutes + common law + conventions + authoritative practice • politically flexible under parliamentary sovereignty.	• USA codified, supreme and comparatively rigid. • INDIA codified and supreme; amendment routes range from simple majority to special majority and State ratification.	• SOUTH AFRICA / GERMANY written transformative/post-authoritarian constitutions with entrenched principles. • CONTROL written != rigid; unwritten != lawless; flexibility and supremacy are separate variables.	• UK uncodified: statutes + common law + conventions + authoritative practice • politically flexible under parliamentary sovereignty.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: A constitutional scheme organises sovereignty, institutions, rights, territorial power and accountability, rather than merely listing provisions borrowed from foreign constitutions Applied here to written, unwritten, rigid and flexible constitutional forms Applied here to written, unwritten, rigid and flexible constitutional forms.

03

STAGE 03

PARLIAMENTARY, PRESIDENTIAL AND SEMI-PRESIDENTIAL EXECUTIVES

PARLIAMENTARY, PRESIDENTIAL AND SEMI-PRESIDENTIAL EXECUTIVES · UK PARLIAMENTARY FUSION · COLLECTIVE RESPONSIBILITY · NOMINAL/FORMAL HEAD DISTINCTION. · USA PRESIDENTIAL SEPARATION · FIXED TENURE · SEPARATELY ELECTED EXECUTIVE · LEGISLATIVE CHECKS.

INDIA / UK parliamentary fusion	collective responsibility	confidence	nominal/formal head distinction.
USA presidential separation	fixed tenure	separately elected executive	legislative checks.
FRANCE semi-presidential dual executive	directly elected President	responsible Prime Minister cohabitation when parliamentary majority differs.	

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• INDIA / UK parliamentary fusion • collective responsibility • nominal/formal head distinction. • USA presidential separation	• fixed tenure • separately elected executive • legislative checks. • FRANCE semi-presidential dual executive	• directly elected President • responsible Prime Minister cohabitation when parliamentary majority differs. • GERMANY constructive vote of no confidence strengthens parliamentary stability. • SWITZERLAND collegial Federal Council and direct-democratic content.	• Indian President != US President; parliamentary fusion != absence of checks.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Parliamentary, presidential and semi-presidential systems distribute executive legitimacy and legislative responsibility differently, producing distinct risks of instability, deadlock or dual authority Applied here to parliamentary, presidential and semi-presidential executives Applied here to parliamentary, presidential and semi-presidential executives.

04

STAGE 04

FEDERAL, UNITARY AND HYBRID DESIGN WITH UPPER HOUSES

FEDERAL, UNITARY AND HYBRID DESIGN WITH UPPER HOUSES · USA COORDINATE FEDERALISM · STATE EQUALITY IN SENATE · DUAL CITIZENSHIP/COURT FEATURES. · CANADA FEDERAL WITH STRONG-CENTRE AND RESIDUARY FEDERAL POWER INFLUENCES. · AUSTRALIA FEDERAL DIVISION + STRONG ELECTED SENATE + CONCURRENT/TRADE · UNION/STATE/CONCURRENT LISTS · UNION RESIDUARY POWER

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
USA coordinate federalism	AUSTRALIA federal division + strong elected Senate + concurrent/trade inspirations.	emergency centralisation	German Bundesrat represents Land governments.
State equality in Senate	Union/State/Concurrent Lists	UPPER HOUSES	TRAP bicameral label does not imply identical federal representation.
dual citizenship/court features.	Union residuary power	Rajya Sabha population-weighted, indirectly elected and unequal	
CANADA federal with strong-centre and residuary federal power influences.	single citizenship integrated judiciary	US Senate State-equal and appointment-confirming	

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• USA coordinate federalism • State equality in Senate • dual citizenship/court features. • CANADA federal with strong-centre and residuary federal power influences.	• AUSTRALIA federal division + strong elected Senate + concurrent/trade inspirations. • Union/State/Concurrent Lists • Union residuary power • single citizenship integrated judiciary	• emergency centralisation • UPPER HOUSES • Rajya Sabha population-weighted, indirectly elected and unequal • US Senate State-equal and appointment-confirming	• German Bundesrat represents Land governments. • TRAP bicameral label does not imply identical federal representation.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Upper Houses express federalism differently through unequal or equal State representation, selection methods and powers, so bicameralism alone does not establish federal equivalence Applied here to federal, unitary and hybrid design with upper houses Applied here to federal, unitary and hybrid design with upper houses.

05

STAGE 05

SUPREMACY, JUDICIAL REVIEW AND CONSTITUTIONAL COURTS

SUPREMACY, JUDICIAL REVIEW AND CONSTITUTIONAL COURTS · UK PARLIAMENTARY SOVEREIGNTY WITH RIGHTS AND DEVOLUTION QUALIFICATIONS. · USA WRITTEN SUPREMACY + DIFFUSE JUDICIAL REVIEW THROUGH ORDINARY · GERMANY SPECIALISED FEDERAL CONSTITUTIONAL COURT. · SUPREME COURT + HIGH COURTS EXERCISE DIFFUSE REVIEW, WRITS · PARLIAMENT REMAINS CONSTITUTION-LIMITED. · KESAVANANDA BHARATI (1973) · BASIC STRUCTURE.

UK parliamentary sovereignty with rights and devolution qualifications.

USA written supremacy + diffuse judicial review through ordinary courts. → GERMANY specialised Federal Constitutional Court. → Supreme Court + High Courts exercise diffuse review, writs and federal adjudication

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• UK parliamentary sovereignty with rights and devolution qualifications. • USA written supremacy + diffuse judicial review through ordinary courts. • GERMANY specialised Federal Constitutional Court. • Supreme Court + High Courts exercise diffuse review, writs and federal adjudication.	• Parliament remains Constitution-limited. • Kesavananda Bharati (1973) → basic structure. • Minerva Mills (1980) → limited amendment and FR-DPSP harmony. • First Judges Case (1981) → initial executive primacy.	• Second Judges Case (1993) → collegium and judicial primacy. • Third Judges Case (1998) → collegium consultation enlarged. • Fourth Judges Case (2015) → judicial independence control of NJAC. • S.R. Bommai (1994) → federalism and secularism as basic-structure controls.	• Indian judicial review is not borrowed as an unlimited US copy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Constitutional supremacy subjects legislation to higher law and judicial review, whereas parliamentary sovereignty locates final ordinary law-making authority in the legislature Applied here to supremacy, judicial review and constitutional courts Applied here to supremacy, judicial review and constitutional courts.

06

STAGE 06

RIGHTS, DUE PROCESS AND SOCIO-ECONOMIC DIRECTIVES

RIGHTS, DUE PROCESS AND SOCIO-ECONOMIC DIRECTIVES · USA RIGHTS TRADITION + DUE PROCESS + STRONG JUDICIAL · FUNDAMENTAL RIGHTS + ARTICLE 32/226 REMEDIES · DIRECTIVE PRINCIPLES + DUTIES + REASONABLE-RESTRICTION ARCHITECTURE. · IRELAND DIRECTIVE-PRINCIPLE INSPIRATION, ADAPTED TO INDIAN TRANSFORMATIVE GOVERNANCE. · SOUTH AFRICA EXPRESS JUSTICIABLE SOCIO-ECONOMIC RIGHTS AND PROPORTIONALITY CONTEXT. · "PROCEDURE ESTABLISHED BY LAW" TEXTUAL INFLUENCE. · MANEKA GANDHI (1978) ADDS FAIRNESS, NON-ARBITRARINESS AND REASONABLENESS.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
USA rights tradition + due process + strong judicial enforcement.	IRELAND directive-principle inspiration, adapted to Indian transformative governance.	"procedure established by law" textual influence.	procedure is not post-Maneka Gandhi (1978) formalism.
Fundamental Rights + Article 32/226 remedies	SOUTH AFRICA express justiciable socio-economic rights and proportionality context.	Maneka Gandhi (1978) adds fairness, non-arbitrariness and reasonableness.	
Directive Principles + duties + reasonable-restriction architecture.	JAPAN / INDIA	Indian DPSPs are not operationally identical to Ireland	

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• USA rights tradition + due process + strong judicial enforcement. • Fundamental Rights + Article 32/226 remedies • Directive Principles + duties + reasonable-restriction architecture.	• IRELAND directive-principle inspiration, adapted to Indian transformative governance. • SOUTH AFRICA express justiciable socio-economic rights and proportionality context. • JAPAN / INDIA.	• "procedure established by law" textual influence. • Maneka Gandhi (1978) adds fairness, non-arbitrariness and reasonableness. • Indian DPSPs are not operationally identical to Ireland	• procedure is not post-Maneka Gandhi (1978) formalism.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Rights systems differ in text and enforceability, but comparative assessment must examine remedies, limitations and judicial doctrine rather than count enumerated rights alone Applied here to rights, due process and socio-economic directives Applied here to rights, due process and socio-economic directives.

07

STAGE 07

AMENDMENT, EMERGENCY AND ELECTORAL DESIGN

AMENDMENT, EMERGENCY AND ELECTORAL DESIGN · UK POLITICAL FLEXIBILITY · USA HIGH RIGIDITY · INDIA MULTI-TRACK ARTICLE 368 · GERMANY ETERNITY CLAUSE · SWITZERLAND REFERENDUM ROUTES · INDIAN CONTROL · KESAVANANDA BHARATI (1973) BASIC STRUCTURE

UK political flexibility	USA high rigidity	India multi-track Article 368
Germany eternity clause	Switzerland referendum routes.	
India/UK FPTP legislatures	US electoral college Presidency	
France two-round Presidency	Germany mixed-member	

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• UK political flexibility • USA high rigidity • India multi-track Article 368 • Germany eternity clause • Switzerland referendum routes.	• INDIAN CONTROL • Kesavananda Bharati (1973) basic structure. • I.R. Coelho (2007) post-1973 Ninth Schedule review. • India: Articles 352/356/360 with 44th Amendment safeguards and review. • Germany: post-authoritarian safeguards.	• France: distinct presidential emergency design. • India/UK FPTP legislatures • US electoral college Presidency • France two-round Presidency • Germany mixed-member	• Switzerland referendums/initiatives. • TRAP electoral system follows office and party-system context; no model is universally superior

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Amendment design balances adaptability with constitutional identity through different thresholds, while India's basic-structure doctrine adds a judicial limit beyond formal procedure Applied here to amendment, emergency and electoral design Applied here to amendment, emergency and electoral design.

08

STAGE 08

SECULARISM AND ACCOUNTABILITY INSTITUTIONS

SECULARISM AND ACCOUNTABILITY INSTITUTIONS · PRINCIPLED ENGAGEMENT, EQUALITY AND REFORM. · NON-ESTABLISHMENT + FREE EXERCISE. · LAICITE AND REPUBLICAN PUBLIC SPHERE. · COOPERATIVE CHURCH-STATE ARRANGEMENTS. · INDIA CAG · CONSTITUTIONAL WESTMINSTER ADAPTATION · STATUTORY OMBUDSMAN, NOT CONSTITUTIONAL COURT.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
India: principled engagement, equality and reform.	Germany: cooperative church-State arrangements.	Finance Commission: periodic expert federal-transfer body.	Germany: cooperative church-State arrangements.
USA: non-establishment + free exercise.	India CAG: constitutional Westminster adaptation.	ECI: central constitutional election management.	
France: laicite and republican public sphere.	Lokpal: statutory ombudsman, not constitutional court.	COMPARATIVE LESSON appointment, jurisdiction, remedy and political context matter more than institutional label.	

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• India: principled engagement, equality and reform. • USA: non-establishment + free exercise. • France: laicite and republican public sphere.	• Germany: cooperative church-State arrangements. • India CAG: constitutional Westminster adaptation. • Lokpal: statutory ombudsman, not constitutional court.	• Finance Commission: periodic expert federal-transfer body. • ECI: central constitutional election management. • COMPARATIVE LESSON appointment, jurisdiction, remedy and political context matter more than institutional label.	• Germany: cooperative church-State arrangements.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Indian secularism permits principled engagement and social reform, while the American model emphasises non-establishment and free exercise; neither system creates an absolute wall Applied here to secularism and accountability institutions Applied here to secularism and accountability institutions.

09

STAGE 09

CONSTITUTIONAL OFFICES AND TERRITORIAL CHAMBERS

COMPARE THE SAME OFFICE · APPOINTMENT · TENURE · POWER · PRESIDENTS · INDIA ≠ USA ≠ FRANCE · UPPER HOUSES · RAJYA SABHA ≠ SENATE ≠ BUNDESRAT · ACCOUNTABILITY · ADVICE · REMOVAL · REVIEW

FUNCTION / SOURCE	INDIAN ADAPTATION	CHECK / LIMIT	EXAM CONSEQUENCE
• COMPARE THE SAME OFFICE • APPOINTMENT · TENURE · POWER	• PRESIDENTS • INDIA ≠ USA ≠ FRANCE	• UPPER HOUSES • RAJYA SABHA ≠ SENATE ≠ BUNDESRAT	• ACCOUNTABILITY • ADVICE · REMOVAL · REVIEW

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: A common institutional title does not prove a common mandate, power or accountability structure Applied here to constitutional offices and territorial chambers.

10

STAGE 10

VERIFIED PYQS AND COMPARATIVE ANSWER EXECUTION

2018 INDIA-USA · 2019 FRANCE-SECULARISM · 2020 INDIA-UK COURTS · 2022 PRESIDENTIAL ELECTIONS · 2023 SOVEREIGNTY · 2024 SECULARISM · 2025 PARDON + JUDGES · FUNCTION → DIFFERENCE → CONSEQUENCE

FUNCTION / SOURCE	INDIAN ADAPTATION	CHECK / LIMIT	EXAM CONSEQUENCE
• 2018 INDIA-USA • 2019 FRANCE-SECULARISM	• 2020 INDIA-UK COURTS • 2022 PRESIDENTIAL ELECTIONS	• 2023 SOVEREIGNTY • 2024 SECULARISM	• 2025 PARDON + JUDGES • FUNCTION → DIFFERENCE → CONSEQUENCE

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: A high-scoring comparison holds the function constant, explains institutional difference and carries it to constitutional consequence Applied here to verified pyqs and comparative answer execution.

11

STAGE 11

INDIA'S HYBRID ADAPTATION AND UPSC SYNTHESIS

INDIA'S HYBRID ADAPTATION AND UPSC SYNTHESIS · INDIAN HYBRID · BRITISH RESPONSIBLE GOVERNMENT + WRITTEN SUPREMACY · US RIGHTS/REVIEW + CANADIAN STRONG-CENTRE FEDERATION · IRISH DIRECTIVES + AUSTRALIAN FEDERAL TECHNIQUES · GERMAN EMERGENCY LESSONS + SOUTH AFRICAN TRANSFORMATIVE COMPARISON. · PRELIMS FIREWALL UNCODIFIED · LEGISLATIVE SUPREMACY IN INDIA FEDERAL

INDIAN HYBRID → British responsible government + written supremacy → US rights/review + Canadian strong-centre federation → Irish directives + Australian federal techniques → German emergency lessons + South African transformative comparison.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• INDIAN HYBRID • British responsible government + written supremacy • US rights/review + Canadian strong-centre federation • Irish directives + Australian federal techniques	• German emergency lessons + South African transformative comparison. • PRELIMS FIREWALL uncodified != unwritten • parliamentary != legislative supremacy in India federal != equal upper-house seats • President titles != powers borrowed != copied	• DPSP != enforceable right • Rajya Sabha != US Senate. • MANN MATRIX design → commonality → difference → reason → consequence → qualification. • India's Constitution is original in synthesis: foreign techniques were re-engineered for democratic responsibility, social transformation, federal diversity and	• judicially limited power.

MECHANISM / VERDICT — India's Constitution is original in synthesis: foreign techniques were re-engineered for democratic responsibility, social transformation, federal diversity and judicially limited power.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Germany reaches a comparable protective objective through an express eternity clause; India's limit is judicially developed Applied here to India's hybrid adaptation and upsc synthesis Applied here to India's hybrid adaptation and upsc synthesis.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT · SOCIAL CLEAVAGES AND STATE CAPACITY · LEGAL CULTURE AND CONVENTIONS · INTERACTION WITH OTHER CONSTITUTIONAL INSTITUTIONS; AND · LATER JUDICIAL AND POLITICAL DEVELOPMENT. · COMING TOGETHER · PREVIOUSLY AUTONOMOUS UNITS POOL SOVEREIGNTY, OFTEN RETAINING STRONG · HOLDING TOGETHER

OPTIONAL DOCTRINE / CASE	ADVANCED LIMIT	COMPARATIVE NUANCE
• social cleavages and state capacity; • legal culture and conventions; • interaction with other constitutional institutions; and • later judicial and political development.	• Coming together: previously autonomous units pool sovereignty, often retaining strong • Holding together: a larger polity constitutionally distributes power to manage diversity • Symmetric federalism: units have broadly similar constitutional powers. • Asymmetric federalism: selected units receive differentiated arrangements because of history.	• self-rule: constitutionally protected policy space of units; and • shared rule: meaningful unit participation in national decisions. • shift distributive choices from elected branches; • incentivise political actors to avoid responsibility;

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.